

HOUSE No. 2201

The Commonwealth of Massachusetts

PRESENTED BY:

Marjorie C. Decker

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to ensuring quality mental health services in state correctional facilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>1/15/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>4/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>4/7/2025</i>
<i>Estela A. Reyes</i>	<i>4th Essex</i>	<i>5/28/2025</i>

HOUSE No. 2201

By Representative Decker of Cambridge, a petition (accompanied by bill, House, No. 2201) of Marjorie C. Decker relative to quality mental health services in state correctional facilities. Mental Health, Substance Use and Recovery.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to ensuring quality mental health services in state correctional facilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Section 1 of Chapter 19 of the General Laws is hereby amended by adding
2 after the third paragraph:

3 The commissioner of mental health shall have supervision over the provision of mental
4 health services to prisoners in the custody of the department of correction, including review and
5 approval of any contract between the department of correction and any other entity concerning
6 the provision of mental health services, and shall establish minimum standards for the effective
7 delivery of such services. At least once each six months the commissioner shall audit each state
8 correctional facility to determine compliance with the minimum standards.

9 SECTION 2: Section 17A of Chapter 127 of the General Laws is hereby amended in
10 paragraph (a) by inserting after the words “qualified mental health professional”, the following:-
11 “, and shall be under the supervision of the department of mental health”